

Amendment No. 1 to HB1712

Howell
Signature of Sponsor

AMEND Senate Bill No. 1782

House Bill No. 1712*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 55-8-306(a), is amended by deleting subdivisions (1)-(3) and substituting instead:

(1) A class 1 electric bicycle or a class 2 electric bicycle may be operated on any part of a street or highway where bicycles are authorized to travel. As used in this section, "any part of a street or highway where bicycles are authorized to travel" includes a bicycle lane or other portion of a roadway designated for exclusive use by bicyclists, the shoulder or berm, and a path or trail intended for use by bicyclists.

(2)

(A) A local government may regulate or prohibit, by resolution or ordinance, the operation of a class 1 electric bicycle or class 2 electric bicycle on any part of a street or highway where bicycles are authorized to travel within its jurisdiction, including any part of a state highway, if the local government determines that the regulation or prohibition is necessary, in the interest of public safety.

(B) A state agency having jurisdiction over any part of a street or highway where bicycles are authorized to travel, may regulate or prohibit, by rule or policy, the operation of a class 1 electric bicycle or class 2 electric bicycle on that part of the street or highway, if the state agency determines that the regulation or prohibition is necessary, in the interest of public safety.

(3) A class 3 electric bicycle shall not be operated on any part of a street or highway where bicycles are authorized to travel, including any part of a state highway, unless:

(A) The bicycle lane, shoulder or berm, or path or trail is within or adjacent to the street or highway; or

(B) The governing body of the local government in which that bicycle lane, shoulder or berm, or path or trail is located or a state agency having jurisdiction over that bicycle lane, shoulder or berm, or path or trail permits, by resolution or ordinance of a local government or by rule or policy of a state agency, the operation of a class 3 electric bicycle on that bicycle lane, shoulder or berm, or path or trail.

SECTION 2. Tennessee Code Annotated, Section 55-8-307(a), is amended by deleting the language "under fourteen (14) years of age" and substituting instead the language "under sixteen (16) years of age".

SECTION 3. Section 1 of this act takes effect upon becoming a law, the public welfare requiring it. Section 2 of this act takes effect July 1, 2026, the public welfare requiring it.